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Provision of July 6, 2023
Register of provisions
No. 334 of July 6, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Cons. Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code concerning the protection of personal data
(legislative decree June 30, 2003, No. 196), as
amended by legislative decree August 10, 2018, No. 101, containing
provisions for the adaptation of the national
legislation to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation in the records;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Regulation of
the Guarantor No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY

1.1. Promotional calls and contact methods

On March 30 and 31, 2022, having received in 2021 and 2022 several reports and
complaints regarding unwanted promotional communications
made using calling numbers registered in the Register of
Communication Operators (so-called ROC) and attributable to
Meglioquesto Digital S.r.l. (hereinafter "Meglioquesto
Digital" or "Company"), an inspection was carried out at the
Company's legal headquarters to verify the processing of
personal data carried out in telemarketing activities and
through the website ([https://
meglioquesto.it/](https://meglioquesto.it/)).

Of the various reports subject to verification,
with respect to which Meglioquesto Digital confirmed having made the
complained calls, only in three cases were the following
criticisms noted.

In one case (XX), the number of the interested party was
included in two advertising campaigns promoted by
Wind - respectively in July 2021 (valid until August 15, 2021) and in October 2021 (valid until
November 15, 2021) - and was not
found in the Company's blacklist. Based on the screenshots of the

relevant records provided during the verification, Meglioquesto Digital would have made persistent and concentrated telephone activity towards the same number (up to 6 calls per day for a total of 20 interactions in the month of July), in violation of the instructions given by Wind which, according to what was stated, provided for a maximum of 10 callbacks during the validity period of the list (one month), with a minimum of 4 hours between one attempt and the next (minutes of March 31, 2022, p. 5).

From the evidence produced, in fact, the attempts to contact the number registered to Mr. XX would have exceeded the limit of 10 interactions in one month as well as the time interval of 4 hours between one call and another, recording attempts to call even in less than an hour.

Similarly, the number registered to Mr. XX (case file No. 178768) would have been contacted for Wind advertising campaigns a total of 37 times, of which 12 in March 2022 and 23 in February 2022, recording attempts to contact up to 5 times in the same day even within an hour of the last call. The number was not found in the Company's blacklist.

Regarding case file No. 164736 (XX), the Company, in producing the contact history that involved the reporting party (6 interactions related to campaigns carried out on behalf of ENI G&L; during the period April 27 – May 4, 2021), provided the instructions

from the client for carrying out the promotional activities to which the “agent” (call center) must adhere. This document, titled “Operational Methods VOICE ORDER”, contrary to what was stated by the Company, does not contain the indication of the methods for re-contacting the user, and it can therefore be assumed that the aforementioned interactions with Mr. XX, which were also recorded at very close intervals (as in the case of the contact attempts on 04/30/2021 at 17:42:19 and 17:42:49), occurred with frequencies established by Meglioquesto Digital. The calling number used on behalf of Eni to contact the relevant user was available to the Company from January to June 2021.

In order to reconstruct a broader and more complete picture of the processing in question for a complete assessment of the legality profiles and to qualify, in concrete terms, the roles and responsibilities of the Company and the clients of the promotional campaigns, following the inspection carried out on March 30 and 31, 2022, it was necessary to request Wind and Eni to provide information, accompanied by relevant documentation, on the operational methods for carrying out the marketing activities entrusted to Meglioquesto Digital, as formalized in the respective contracts (requests for information, pursuant to Article 157 of the Code, of September 5, 2022). From the reading of the “Operational Instructions” produced

by Wind (Annex G of the contract), in response to the aforementioned note of September 5, 2022, it emerged, among the “key principles” to which the partner must adhere in carrying out the obligations undertaken with the signature of the contract, the rule of “Do Not contact the same number more than once a month.”

The “contact frequency rules (Contact Policy)” that Eni outlined in its response dated September 26, 2022, provided that a person who has not responded to contact attempts or who has been unreachable may be called up to 10 times during the validity period of the list, with at least 4 hours between one call and the next.

In its responses to the Authority, Wind specified that it had carried out, as part of annual periodic checks, an inspection activity (so-called “On-site Activity”) conducted via videoconference with Meglioquesto Digital on the dates of November 15, 2021, and December 13, 2021. Eni stated that it also conducts “undercover monitoring by mystery shoppers who simulate being customers or prospects contacted as part of normal teleselling activities and who record the KPIs related to the conduct of the call, adherence to scripts, and the main policies in force.”

1.2. List providers and legality of processing (information and consent)

1.2.1. XX.

During the inspection, the Company produced the list of list providers subjected to an accreditation process in view of future promotional campaigns; it declared, pursuant to Article 168 of the Code, that it had accredited, among the indicated companies, only XX (hereinafter “XX”), having verified the compliance of the information provided and the consents obtained with the Regulation, providing the relevant documentation, particularly concerning the sites XX and XX, managed by third parties, from which XX would have received the personal data subsequently communicated, in turn, as an intermediary, to Meglioquesto Digital for its promotional activities.

With particular regard to the website XX, managed by XX as the data controller, the information provided and the consents obtained have already been subject to inspection by the Authority, resulting in the provision of December 15, 2022, to which full reference is made (at www.garanteprivacy.it, web doc no. 9860553).

Regarding the site XX, of which XX is the owner, the consent to the communication of data to third parties appeared, from the reading of the privacy information, aimed not only at direct marketing activities by the receiving third parties but also at the promotion of the services of Platform XX. In fact, the cited privacy information states that it is possible to “communicate the [...] personal data to [...] commercial partners for the purpose of: (i) being able to offer the services of the Platform [...]”, without clarifying the subjective accountability of the promotional activity, and therefore whether the latter is carried out by the company that collected the data (XX) or by the third parties (to whom the same data is communicated). Therefore, for the two purposes of processing (communication to third parties and promotional activity of the transferring subject), it appeared that a consent that was neither specific nor free had been obtained.

1.2.2. XX and XX

In a communication dated April 14, 2022, to clarify the reservations of March 30, 2022, and supplementing what had already been stated during the inspection, the Company added that it had used, in the year 2021, two additional list providers - XX (publisher) and XX (intermediary) - without, however, providing the texts of the information released by these subjects nor the formulas for obtaining consents, but producing documentation related to XX, which had already been obtained during the inspection.

1.3. Qualification of roles

With reference to the website www.meglioquesto.it, issues have emerged regarding the relationship between the Company and Meglioquesto Lead S.r.l. (hereinafter “Meglioquesto Lead”), both part of the same corporate group - Meglioquesto S.p.A. In particular:

- the data collected through the aforementioned website - which, at the time of the inspection, were found to be attributable to 470 records - are processed by Meglioquesto Lead, as the data controller,

for the performance of promotional activities on behalf of third parties, through Meglioquesto Digital, appointed as the data processor (see minutes of March 30, 2022, p. 5);
- the email address cancellami@meglioquesto.it, indicated in the privacy information (<https://meglioquesto.it/privacy-policy/>) to which requests for cancellation from users of the site are directed, was found to be owned by Meglioquesto Digital, which produced, to clarify the reservation of March 31, 2022, the act of appointment, which was also unsigned, of Meglioquesto Lead as the data processor in question.

Based on the analysis of the overall documentation acquired, the relationship between Meglioquesto Digital and Meglioquesto Lead was not clear; in particular, it was not possible to understand whether the two Companies are linked by a controller/processor relationship, joint controllers, or independent controllers. This circumstance, aggravated by unclear information found on the website, is likely to significantly weaken the self-determination of the individual, which affects the control over the data concerning them through the exercise of their rights. In fact, by way of example, it is noted that the Company, allegedly the owner of the data related to the cancellation requests addressed to the aforementioned email address, is not even indicated in the privacy information as the recipient of the requests.

2. THE ALLEGATION OF VIOLATIONS

****With note dated November 15, 2022 (ref. prot. no. 64343/22), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, whereby, based on the elements acquired during the inspection activity and the subsequent integrations received to resolve the reservations, Meglioquesto Digital was alleged to have possibly violated the following provisions of the Regulation:****

2.1. Articles 5, paragraph 1, letter a) and 25, paragraph 1, of the Regulation, for having made unwanted phone calls using contact methods not formalized by the clients (Wind and Eni in this case) and in violation of the conduct rules imposed by them;

2.2. Articles 6 and 7 of the Regulation, as well as Article 130 of the Code for having acquired personal data from list providers without appropriate consent and without providing the texts of the information notices and the consent forms issued to the data subjects by the list providers XX and XX, despite the Authority's request;

2.3. Articles 5, paragraph 2 and 24, of the Regulation for having acquired the aforementioned personal data lists from third parties without adequate checks and, therefore, without fulfilling the obligations regarding the protection of personal data (such as: information; consent; accuracy and quality of data), in violation of the principle of accountability;

2.4. Articles 5, paragraph 1, letter a) and 12, paragraph 1, of the Regulation as the ownership of the processing carried out through the website was not clear, particularly with reference to the roles held by Meglioquesto Digital and Meglioquesto Lead also regarding the management of cancellation requests addressed to the email address cancellami@meglioquesto.it indicated in the privacy notice.

****3. DEFENSIVE MEMORANDUM****

The Company, in exercising its right of defense, submitted, on December 14, 2022, a memorandum in which it responded to the observations raised by the Authority in the notice of violation.

3.1. Regarding the promotional calls made on behalf of the clients Wind and Eni, while specifying that it operated solely as a data processor, the Company stated that it managed the complained contacts within the limits set by the data controllers in the specific instructions provided at the time of the agreements, therefore requesting the dismissal of the alleged violation referred to in point 2.1. On this occasion, it clarified that a "contact" cannot be defined as "a call that does not lead to any connection between the caller and the recipient," and therefore many of those subject to this proceeding could be considered "mere attempts to use phone numbers to establish contact with the data subject."

In the three cases reported to the Authority, in fact, the contested calls – which would have exceeded

the number of interactions established by the clients as well as the time interval between one contact and another – would have consisted of call attempts without any connection with the recipient. Specifically, with reference to the number of Mr. XX (file no. 164084), “of the 20 calls counted in July 2021,” 9 did not receive a response while the other 11 resulted in “Busy” or “Call Failed.” Therefore, the number of the data subject was not present in the blacklist at the time of the inspection as “no telephone request for cancellation [was] ever received [...] (especially since no verbal contact ever occurred [...]).” Similarly, “of the 35 calls counted in the notice [and directed to Mr. XX - file no. 178768], those that led to a contact with the called phone number [...] are 4 (one with a voicemail response and the others with outcomes of “No answer,” “Call back,” “Generic callback”); the three calls made on February 21, 2021, were due to the fact that the data subject did not answer. All other calls were unsuccessful for technical reasons.” Regarding the number of Mr. XX (file no. 164736), subject to the 6 contested calls, “only in 3 cases did they lead to a verbal contact with the data subject.” Moreover, the specific instructions on the frequency of contacts are not contained in the document titled “Operational Procedures VOICE ORDER” but in the “Contact Frequency Rules (Contact Policy)” where [the data controller ENI] indicated the number of authorized contacts as 10.

3.2. With reference to point 1.2 - List provider and lawfulness of processing (information and consent) - the Company emphasized, in this case as well, that it acted on behalf of the clients solely as a mere processor. This qualification was formalized in the “Framework Agreement for the Use of Database License” between XX and Meglioquesto Digital signed on April 13, 2022. According to the agreement, XX, as an intermediary, would grant Meglioquesto Digital the license to use the data acquired through the websites XX and XX so that the Company, after “verifying the legitimacy of the collection” in terms of information and consent, could use such personal data for conducting marketing campaigns in the interest of the clients.

That said, regarding the aforementioned websites subject to inspection, the Company confirmed that it verified in 2021 the adequacy of the information provided to the data subjects at the time of collection and the appropriateness of the consent forms proposed to them. In this regard, it contested what was represented in the notice regarding the acquisition, in a single option, of personal data for the different purposes of processing carried out through the website XX (communication to...

third parties and promotion of the services of the transferring entity), as referred to in point 1.2.1. of this provision. In particular, it was specified that “the processing consisting of the communication of data to a third party intending to carry out marketing activities with the received data implies that the only consent expressed by the data subject for such processing inevitably concerns two compatible purposes: the communication of data to the third party and the use that the third party will make of the received data, it having been declared that the communication was aimed at allowing the third party to carry out its own marketing activities.”

Furthermore, regarding the two additional accredited list providers in 2021 – XX (publisher) and XX (intermediary) – the texts of the information provided and the formulas for acquiring the consents of the data subjects were produced. As already represented during the inspection, the Company claimed to have implemented a new accreditation process for list providers that takes into account the correct method of acquiring consent, with random checks on a monthly basis, including the “timestamp of the privacy checkbox tick.”

3.3. The Company, in further integration of the responses of April 14 and May 16, 2022, with communication dated November 15, 2022, and in the defense memorandum of December 14, 2022, clarified that it has improved the management of requests for the deletion of personal data addressed to the email address cancellami@meglioquesto.it, by providing a specific section in the footer of the website where the Companies of the Meglioquesto Group to which the aforementioned requests should be directed are indicated. It also specified that the responsibility for managing deletion requests would lie with the Company (which has a new corporate name: MeglioQuesto Voice instead of MeglioQuesto Digital), with the appointment of MeglioQuesto S.p.A. as the data processor; on the other hand, the responsibility for processing the data acquired through the website www.meglioquesto.it, originally attributed to Meglioquesto Lead, is currently attributable to

Meglioquesto S.p.A., as indicated in the privacy notice, for which a new text has been published due to this change. This is because “the website www.meglioquesto.it is no longer enabled to collect the personal data of users interested in the comparison service previously offered [which was owned by Meglioquesto Lead].”

4. LEGAL ASSESSMENTS

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are made.

4.1. With reference to point 3.1. of the defense memorandum, it is noted that the only rule regarding the frequency of calls is crystallized in the “Operational Instructions” of Wind (attached to the contract signed in 2011, followed by the integration of 2020) and consists of “Do not contact the same number more than once a month.” Since there is no definition of “contact” emerging from the documentation on file, and therefore it cannot be established whether “contact” refers to verbal interaction with the recipients of the call or mere unanswered calls, the 9 attempts confirmed by the Company towards Mr. XX’s user could also include the “failed calls” that Meglioquesto Digital counted among the additional 11 recorded, thereby increasing the number of calls allegedly permitted. In the case of Mr. XX, the three calls on February 21, 2021, due to the lack of response from the interested party, were made at intervals of less than 4 hours imposed by the client between one call and another.

Regarding the calls made on behalf of Eni to Mr. XX, it is first observed that the “Contact Rules” mentioned by the Company in the defense memorandum and relating to specific instructions regarding the frequency of calls are described in point 9.2. of the Campaign Operation Evolution, a document approved on June 20, 2022, and therefore subsequent to the inspection by the Office as well as to the promotional campaign that affected the user of the aforementioned complainant in April 2021. It follows that the contacts with Mr. XX’s user occurred without specific indications on the methods of re-contacting the user, since the document produced by the Company during the inspection containing the operational instructions of Eni (see page 5 of the minutes of March 31, 2022 – Annex no. 3-bis) – titled “Operational Methods VOICE ORDER” – does not contain any indication in this regard (as also confirmed in the defense memorandum on page 3), and it can therefore be considered that the aforementioned interactions with the interested party occurred with frequencies established by Meglioquesto Digital.

That said, in the cases under examination by the Authority (file no. 164087 – XX; file no. 178768 – XX; file no. 164736 – XX), it was found that the Company carried out telephone activities in a repeated and insistent manner towards the users of the interested parties, in ways that appear invasive of fundamental rights to privacy and individual tranquility, as well as in violation of the principle of fairness (pursuant to Article 5 par. 1, lett. a of the Regulation) (see provision of January 15, 2020, no. 7, par. 3.2, doc. web no. 9256486; see provision of March 11, 2021, no. 98, doc. web no. 9577371).

However, considering that the verified contacts concerned only 3 telephone numbers, in the absence of similar requests against Meglioquesto Digital, it is deemed appropriate to refrain from applying a sanction of

financial nature and to be able to address the Company, as a proportionate and deterrent measure, a warning, pursuant to Article 58, paragraph 2, letter b) of the Regulation, recalling the importance of adopting correct and non-invasive methods in the conduct of promotional calls and in the possible use of other means for the same purpose (pursuant to Article 5, paragraph 1, letter a of the Regulation).

4.2. With regard to point 3.2. of the defense memorandum, it is first noted that the Framework Agreement, which would relegate the Company to mere data processor, was signed with XX only after the inspection assessment of March 2022 (specifically on April 13, 2022); it follows that the checks carried out in 2021 on the information and consents given during the registration on the XX and XX sites, which the Company deemed adequate enough to credit XX in the provision of lists, would have occurred in the absence of agreements or directives, even if not explicitly stated in the contractual form, that would allow defining the privacy roles. In any case, regardless of the role assumed by the

Company in acquiring the lists (independent data controller or data processor), liability cannot be excluded for Meglioquesto Digital in verifying the lawfulness of the collected data; this is because the collection and storage of data acquired from third parties pertain to a phase of processing that is prior and independent from the promotion of services and products of the clients and consists of an activity carried out by the Company in full autonomy and subject only to prior authorizations and subsequent controls by the mandating companies in order to allow the entry of the personal data into the company databases (as can also be inferred from the contracts concluded with Wind and Eni, the only ones available).

This duly clarified, with reference to the contested profiles in point 2.2., it is observed that the objection raised in the defense arguments regarding the genuineness of the single consent for two treatment purposes deemed compatible (communication of data to third parties and marketing activities by the transferring party) is irrelevant to what was represented in the initiation of the procedure: it is not the consent to communication to third parties for the realization of direct marketing of such subjects that is contested, but rather the mixing, in a single formulation, of that purpose with the promotional purpose of the transferring company that collected the data and provided it to the assignee (in this case XX). Similarly, with reference to the XX site, the acquisition in a single option of personal data for the different purposes of processing (communication to further third parties; marketing and profiling) was found to be non-compliant with the regulations in the matter, as already established by the aforementioned provision of December 15, 2022.

With reference to the list providers XX and XX (of which, however, no contractual documentation regulating their respective privacy roles has been provided), it is represented that the information and consents given were produced only during the defense memorandum and, for this reason, excluded from the contested profiles in the communication of the initiation of the procedure. Furthermore, since the processing carried out by XX is subject to a separate investigation, it is deemed appropriate to suspend any evaluation by the Authority at this stage.

In light of the above - considering that, in any case, the collection of personal data for a specific purpose represents a processing operation even where that purpose has not yet been concretely pursued and, even for mere storage, it is therefore necessary to obtain suitable consent - it is deemed appropriate to confirm the existence of the contested violation referred to in points 2.2 and 2.3 of this provision and, pursuant to Article 58, paragraph 2, letter f), of the Regulation, to impose a ban on processing for promotional purposes of all data acquired from list providers for which Meglioquesto Digital does not have informed, free, specific, and documentable consent, as indicated above, pursuant to Articles 6 and 7 of the Regulation, as well as Article 130 of the Code.

4.3. With reference to point 3.3. of the defense memorandum, it is first noted how Meglioquesto S.p.A. holds the dual role of data controller through the website and processor in managing cancellation requests addressed to the email address cancellami@meglioquesto.it owned by Meglioquesto Voice (formerly Meglioquesto Digital). These qualifications, however, are not formalized in a deed of appointment. That said, in the privacy notice published on the website www.meglioquesto.it and available at the link <https://meglioquesto.it/privacy-policy/> (which, as described in the memorandum, differs in content from that acquired during the inspection), it is expressly stated that requests to exercise rights, including cancellation, can be addressed to the data controller of personal data, originally identified as Meglioquesto Lead and currently attributable to Meglioquesto S.p.A., using the contacts meglioquesto@pec.meglioquesto.it or dpo@meglioquesto.it.

The described circumstance allows for the observation of the continued lack of indication, in the cited privacy notice, of Meglioquesto Digital (now Meglioquesto Voice) as the data controller of cancellation requests. This qualification does not even emerge in the section dedicated to cancellation requests directed to the email address cancellami@meglioquesto.it and retrievable in the footer of the website, causing the interested parties a breach in their understanding of the operations carried out by the Company itself and erroneously leading users to believe that Meglioquesto S.p.A. is the data controller in question. Moreover, the indication of additional email addresses beyond the designated box for data deletion requests (cancellami@meglioquesto.it) does not facilitate the

understanding of the actual contact necessary to satisfy the related requests of the interested parties. Nor do the guidelines produced in support of the communication of November 15, 2022, remedy this gap, as they merely describe the process of sorting deletion requests addressed to the box cancellami@meglioquesto.it, contemplating different response times depending on whether the Companies of the Meglioquesto Group operate as Data Controller or Data Processor. However, considering that the Company has declared that it no longer processes personal data through the aforementioned website (a circumstance, moreover, verified by the Authority), it is deemed appropriate to refrain from applying a monetary sanction and, pursuant to Art. 58, par. 2, lett. d), of the Regulation, to order the provision of an appropriate notice to the interested parties on the aforementioned website, clearly indicating the data controller to whom the request for deletion of personal data should be addressed, along with the specific email box designated for its handling, pursuant to Arts. 12 and 13 of the Regulation.

5. CONCLUSIONS

Based on the above, the responsibility of Meglioquesto Digital for the following violations of the Regulation is deemed established:

- Art. 5, par. 1, lett. a) and par. 2;
- Arts. 6 and 7;
- Art. 12, par. 1;
- Arts. 24 and 25, par. 1;
- as well as Art. 130 of the Code.

Having established the unlawfulness of the above-described conduct of the Company, it is necessary to:

- pursuant to Art. 58, par. 2, lett. b), of the Regulation, issue a warning, emphasizing the importance of adopting correct and non-invasive methods in conducting promotional calls and in the possible use of other means for the same purpose (ex Art. 5, par. 1, lett. a of the Regulation);
 - pursuant to Art. 58, par. 2, lett. f), of the Regulation, impose a ban on processing for promotional purposes of all data acquired from list providers for which Meglioquesto Digital does not have informed, free, specific, and documentable consent, as indicated above, pursuant to Arts. 6 and 7 of the Regulation, as well as 130 of the Code.
 - pursuant to Art. 58, par. 2, lett. d), of the Regulation, order the provision of an appropriate notice to the interested parties on the website, clearly indicating the data controller to whom the request for deletion of personal data should be addressed, along with the specific email box designated for its handling, pursuant to Arts. 12 and 13 of the Regulation;
- with regard to the treatments already carried out and for deterrent purposes, it is believed that the conditions for the application of an administrative monetary sanction pursuant to Arts. 58, par. 2, lett. i) and 83 of the Regulation exist.

6. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION

The confirmed violations above necessitate the adoption of an order for injunction, pursuant to Arts. 166, comma 7, of the Code and 18 of Law No. 689/1981, for the application against Meglioquesto Digital of the administrative monetary sanction provided for by Art. 83, paras. 4 and 5, of the Regulation. However, since various provisions of the Regulation and the Code have been violated in relation to connected treatments carried out by the Company for marketing purposes, it is deemed applicable Art. 83, par. 3, of the Regulation, according to which, “if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation,” thus absorbing the less serious violations, with the consequent application of the sanction provided for in Art. 83, par. 5, of the Regulation.

For the determination of the amount of the sanction, which must “in any case [be] effective, proportionate and dissuasive” (Art. 83, par. 1), it is necessary to take into account the elements indicated in Art. 83, par. 2, of the Regulation.

The following circumstances must be considered in this specific case under the aggravating factors:

1. the severity of the detected violations, due to the fact that the data has been processed for

promotional purposes in the absence of suitable free and specific consent (Art. 83, par. 2, lett. a);
2. the negligent nature of the conduct since the Company's presence in the market for many years should have allowed it to acquire a sufficient background of experience and competence to adopt more compliant fundamental choices with the regulatory provisions (Art. 83, par. 2, lett. b);
3. the inconsistency of the Company's conduct with the substantial regulatory activity of the Authority in the field of marketing, particularly regarding information and consent (Art. 83, par. 2, lett. k).

****What mitigating factors are considered:****

1. the absence of previous proceedings initiated against the Company (art. 83, par. 2, lett. e);
2. the small number of users receiving the calls (n. 3) ascertained by the Authority (art. 83, par. 2, lett. a);
3. the timely adoption of corrective measures initiated immediately after the conclusion of the inspection findings (art. 83, par. 2, lett. f);
4. the high degree of cooperation in interaction with the supervisory Authority, making it easier to conduct investigative activities, particularly during the delicate emergency period (art. 83, par. 2, lett. f).

Based on the overall elements mentioned above, applying the aforementioned principles of effectiveness, proportionality, and deterrence as per art. 83, par. 1, of the Regulation, while also considering the necessary balance between the rights of the data subjects and the freedom of enterprise, in order to limit the economic impact of the sanction on the organizational, functional, and employment needs of the Company, it is deemed appropriate to apply to Meglioquesto Digital – also taking into account other similar cases – the administrative sanction of a payment of €10,000.00 (ten thousand/00), equal to approximately 0.05% of the maximum penalty.

In this case, it is also deemed appropriate to apply the ancillary sanction of publication on the website of the Guarantor of this provision, as provided for by art. 166, par. 7, of the Code and art. 16 of the Guarantor's Regulation no. 1/2019, considering the subject matter of the investigation, namely the phenomenon of unwanted marketing, regarding which this Authority has adopted numerous measures both of a general nature and directed at specific data controllers, and on which there is heightened attention from users.

It is noted that pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition provision is punished with imprisonment from three months to two years, and that, in the event of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e), of the Regulation is also applied in the administrative context.

Finally, the prerequisites referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, exist for the annotation of the violations identified here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****

pursuant to art. 57, par. 1, lett. f) of the Regulation, declares unlawful the processing described in the terms of the motivation by Meglioquesto Digital S.r.l., with registered office in Milan, Viale Francesco Restelli 3/1, VAT number 11538761005, and consequently:

a) pursuant to art. 58, par. 2, lett. b) of the Regulation, admonishes the Company on the necessity to adopt correct and non-invasive methods in conducting promotional calls and in the possible use of other means for the same purpose (ex art. 5 par. 1, lett. a of the Regulation);
b) pursuant to art. 58, par. 2, lett. f) of the Regulation, prohibits any further processing for promotional purposes of all data acquired from list providers for which Meglioquesto Digital does not have informed, free, specific, and documentable consent, pursuant to arts. 6 and 7 of the Regulation, as well as 130 of the Code;
c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders to provide data subjects with an appropriate notice on the Company's website indicating clearly the data controller to whom the request for deletion of personal data should be addressed, along with the specific email address designated for its handling (ex arts. 12 and 13 of the Regulation);
d) pursuant to art. 157 of the Code, orders the Company to communicate to the Authority, within 30

days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by art. 83, par. 5, lett. e) of the Regulation; e) pursuant to art. 17 of the Guarantor's Regulation no. 1/2019, orders the annotation in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

****ORDERS****

pursuant to art. 58, par. 2, lett. i), of the Regulation, Meglioquesto Digital S.r.l., represented by its legal representative, to pay the sum of €10,000.00 (ten thousand/00), as an administrative pecuniary sanction for the violations indicated in the motivation; it is noted that the offender, pursuant to art. 166, par. 8, of the Code, has the option to resolve the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

****ORDERS****

the aforementioned Company, in the event of failure to resolve the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of €10,000.00 (ten thousand/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of Law no. 689/1981;

****PROVIDES****

as an ancillary sanction, pursuant to art. 166, comma 7, of the Code and of Article 16 of the Regulation of the Guarantor No. 1/2019, the publication on the Guarantor's website of this provision and, pursuant to Article 17 of the Regulation of the Guarantor No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei